



CHAPTER ix.

An Act to confirm a Provisional Order of the
Minister of Health relating to the borough of
Hastings. [27th March 1939]

WHEREAS under the provisions of the Public 38 & 39 Vict.
Health Act 1875 the Minister of Health has c. 55.
made a provisional order which needs confirmation by
Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

1. The order of the Minister of Health which is Order in
set out in the schedule to this Act is hereby confirmed schedule
and shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.
Provisional Order Confirmation (Hastings) Act 1939.

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Provisional Order Confirmation (Hastings)
Act, 1939.

SCHEDULE.

BOROUGH OF HASTINGS.

Provisional order altering a local Act.

WHEREAS the mayor aldermen and burgesses of the borough of Hastings acting by the council (in this order called "the corporation") desire to obtain powers to enable them to grant gratuities in certain cases to the widows or dependants of employees who die in their service;

1 Edw. 8. &
 1 Geo. 6.
 c. lxxviii.

And whereas the Hastings Corporation (General Powers) Act 1937 (in this order called "the Act of 1937") is in force in the borough;

And whereas the corporation have applied to the Minister of Health for the issue of a provisional order to alter the Act of 1937 in the manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby makes the following order:—

Short title
 and
 commence-
 ment.

1. This order may be cited as the Hastings Order 1939 and shall come into operation on the date of the Act of Parliament confirming it.

Amendment
 of Act of
 1937.

2. Subsection (1) of section 159 (Repeals) of the Act of 1937 shall have effect as if after the words "Part XII (Formation of thrift and insurance funds)" there were inserted the words "except section 104 (Power to grant gratuities in certain cases)" which section however shall have effect as if the following provision were substituted therefor (that is to say):—

15 & 16
 Geo. 5. c. 84.
 12 & 13
 Geo. 5. c. 59.
 1 Edw. 8. &
 1 Geo. 6. c. 68.

" 104.—(1) The corporation may in any case where no right to any compensation or benefit arises under the Workmen's Compensation Act 1925 the Local Government and other Officers' Superannuation Act 1922 or the Local Government Superannuation Act 1937 grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment

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(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

(3) In this section the expression 'employee' means an employee whether permanent or temporary but does not include a person whose employment is of a casual nature and the expression 'benefit' in relation to the Local Government and other Officers' Superannuation Act 1922 or the Local Government Superannuation Act 1937 does not include a return of contributions."

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